

TIRRA Special Executive Meeting

Wednesday, August 24, 2022, 3:00PM

President Wendy Hinsperger called the meeting to order at 3:00PM with the following also present:

- Vice President, Quentin Goodbody
- Treasurer and Solid Waste Chairperson, Ernie Hunter
- Secretary, Lisa Vernon
- Trails Chairperson, Vicki Walker
- St. Margaret's Cemetery Chairperson, Suzanne Sarioglu
- Transportation Chairperson, Stu Downey
- Espokes Chairperson, Claire Hess

Wendy Hinsperger thanked everyone for attending this Special Executive Meeting called by Ernie Hunter and herself. Wendy read some Roberts Rules for small boards which could help move through the full agenda.

AGENDA ITEM a) Collectively respond as an Executive, to Ann Eriksson's letter.

Response to Ann Eriksson's letter still pending as TIRRA Executive works through concerns raised about the July 23rd General Members Meeting notification and voting process.

Same clarity is required for the collective response to Vicki Walker. Wendy asked how we would respond collectively: 1 letter, or a compilation of 8 letters. See motion at end of a).

Response needs to acknowledge each concern; however, some items may require a longer time to address (for example bylaws, vision). Quentin suggested the TIRRA board address the community first via an e-spokes communication: agreed. Stu said we may not have answers to all, but we should have action items with deadline: agreed. It was also suggested the minutes should be comprised of agreements as well as motions: agreed. Wendy will request Ann's permission to include her letter in the minutes. Stu suggested draft letters contain full list of action items with dates.

MOTION: Suzanne moved that TIRRA president organize an in-camera TIRRA executive workshop the purpose of which is to address both Vicki Walker's letter of July 27, 2022, and Ann Eriksson's letter of July 31, 2022, point by point; consider our individual responses; come to consensus as an executive and formally respond to each correspondent via letter. Vicki seconded. All in Favour.

AGENDA ITEM b)

Approval of July 23rd Draft General Meeting Minutes required discussion. Some board members have received feedback from members who attended the general meeting: concerns re transparency, clarity of minutes, how decisions are made. Minutes: concern the draft minutes did not accurately reflect the meeting and the intent of the motions presented and approved. How will the minutes be managed for transparency/accuracy: suggestion were: notation of how many people are in attendance, voice record minutes, write motions down on whiteboard before being voted on.

MOTION: Stu moved to remove voting motions and any references same from the July 23rd Draft minutes due to inconsistencies. Suzanne seconded. Motion failed.

MOTION: Ernie moved the TIRRA chair contact Tamara Phelan and David Reay via email to seek clarification on the wording of their motions on July 23rd. Motion carried with one abstain.

The amended July 23rd Draft Minutes will be shared to TIRRA Executive for approval by Sunday, August 28th, or as soon as replies received from Tamara and David.

AGENDA ITEM c) Approval of August 17th Draft Special Executive Meeting Minutes require wording changes to avoid opinions and comments by TIRRA Board. A motion was suggested but it was pointed out that motions are not needed to correct draft minutes. Wendy and Lisa will rewrite August 17th minutes by Sunday, August 28th.

MOTION: Ernie moved the August 17th Executive Minutes be accepted as amended. Motion carried with two abstain.

AGENDA ITEM d)

Motion to Amend a Previously Adopted Motion:

Original motion from August 17th, Special Executive Meeting:

“Annul votes taken at the 23rd July 2022 TIRRA GM, accept responsibility and apologize to the Community. Schedule a TIRRA *Special Resolution secret ballot meeting and vote as soon as possible following all TIRRA bylaws and the BC Societies Act.”

MOTION AS PER AGENDA TO EXECUTIVE: Wendy moved Ernie 2nd: Proposed motion: To rescind motions adopted at the 23rd July 2022 TIRRA GM as pertaining to Solid Waste operation, accept responsibility and apologize to the Community. Prepare an *Ordinary Resolution Revote process, regarding the Solid Waste operation, with written ballot, proper notice period, following all TIRRA bylaws and the BC Societies Act.

Note: Per TIRRA Bylaws: A Special Resolution requires 75% approval, An Ordinary Resolution requires 51% approval.

Discussion: Executive discussed the [July 23rd](#) meeting:

Motion approved at [August 17th](#) TIRRA Special Executive Meeting as proposed by Stu and Suzanne.

New Motion at [August 24th](#) TIRRA Special Executive Meeting to rescind Motion by Stu and Suzanne, and replace.

Between the [April 28th](#), Annual General Meeting, and the [July 23rd](#) General Meeting, additional information associated with hauling costs, and inability of CVRD or Recycle BC to provide support in hauling or pricing. The ordinary motion on [July 23rd](#) included 3 options for 2023 budget, based on the new information.

Was the July 23rd General Meeting a special meeting or general, did it have proper notification (yes as per TIRRA bylaws, but in contravention of BC Societies Act).

Can an Ordinary Resolution be annulled and replaced by a Special Resolution?

Was the original motion (August 17th) to annul the vote out of order when suggesting replacing an Ordinary Resolution with a Special Resolution?

Was the original motion (August 17th) to annul the vote even possible without the July 23rd Meeting Minutes not yet approved?

Wendy read some information she researched re Ordinary and Special Resolutions. Wendy encouraged each TIRRA Executive to do some research to enable discussion on further these matters

MOTION: Quentin moved that the Agenda Item d) be tabled. An edited motion, with clarifications will be presented and discussed at the next session of this Special Executive Meeting. All in Favour.

AGENDA ITEM e) f) also moved to next meeting:

- e) Determine all aspects of a revote adhering to BC Societies Act and TIRRA bylaws.
- f) Approve draft Community Communication regarding July 23rd meeting.

The TIRRA board will meet again as soon as possible.

Wendy adjourned the meeting at 5:37PM

Included with these minutes as part of full record of proceedings.
Letter from Ann Eriksson

Ann Eriksson tel: 250.246-8176 email: author@anneriksson.ca

***PO Box 133
81 Blue Heron Rd
Thetis Island, BC
V0R 2Y0***

July 31, 2022

**Executive
Thetis Island Residents' and Ratepayers' Association
Thetis Island, BC
V0R 2Y0**

Dear TIRRA Executive:

I am writing regarding the voting process at the Thetis Island Residents' and Ratepayers' Association General Meeting held July 23, 2022 at Forbes Community Centre. I left the meeting confused about what had just transpired and embarrassed that my name had been mentioned in association with the process.

As the chairperson of another Thetis Island BC Society, I feel that the meeting notification and voting process were inconsistent with the BC Societies Act. I have also read the TIRRA Bylaws and find them very barebones, inflexible and inadequate for the type of decisions, especially financial ones regarding taxation, on which TIRRA members are being asked to vote.

I believe the following were problematic.

1. According to the Act, *a society must not have bylaws that contain a provision that is inconsistent with the Act*. I believe that **the notification process for the meeting was inconsistent with the Act** which states:

Notice of general meeting

77 (1) Written notice of the date and time and, if applicable, the location of a general meeting must be sent to every member of the society.

(a) at least

(i) 14 days before the meeting, unless subparagraph (ii) applies, or

(ii) the number of days before the meeting specified in the bylaws, if the number of days so specified is at least 7 days, and

(b) not more than 60 days before the meeting.

I would argue that **the TIRRA bylaws which require only posting of the notice at the ferry terminal and the community centre is inconsistent with the Act.**

Furthermore, and I was unable to find how many members TIRRA has, but regardless, also from the Act:

“(2) Notice of a general meeting of a society that has more than 250 members is, if permitted by the bylaws, deemed to have been sent under subsection (1) if

(a) notice of the date and time and, if applicable, the location of the meeting has been sent, to every member of the society who has provided an email address to the society, by email to that email address, and

(b) notice of the date and time and, if applicable, the location of the meeting

(i) is published, at least once in each of the 3 weeks immediately before the meeting, in one or more newspapers identified in the bylaws

Members are all asked to include their email addresses on the TIRRA membership form so **it should not have been a problem to notify members by email.**

2. **The notification that was sent out did not include a motion.** While the question about recycling which members were asked to vote on was not described in the notification as a ‘special resolution,’ (although it had all the hallmarks of one) even an ‘ordinary resolution’ should be clearly articulated to the membership in advance. The Act states:

78 *Notice of a general meeting must include the text of any special resolution to be submitted to the meeting.*

And from the Model Bylaws:

3.3 *A notice of a general meeting must state the nature of any business, other than ordinary business, to be transacted at the meeting in sufficient detail to permit a member receiving the notice to form a reasoned judgment concerning that business.*

I argue that not including a motion for such an important financial decision meant the **members did not have sufficient detail to form a reasoned judgement.**

3. **The Motion was improper and confusing:** At the 2022 TIRRA AGM, the membership clearly voted to restart recycling. Why then, was one of the options being voted on ‘Garbage only?’ This question had already been decided. Without the complication of a 3-choice motion or series of motions, a simple two-way choice

between 'Parcel Tax and User-pay' and '100% Parcel tax supported' would have been clear and decisive. Instead, it ended up in a confusing series of motions and votes, such that even the President did not appear to know what she was voting for.

4. **The vote was not properly conducted.** The word 'circus' comes to mind. I note that the TIRRA bylaws include only 'show of hands' as a method of voting. Obviously, by the number of repeated votes taken on the same motions, multiple people walking through the room doing the counting and the final decision to divide members on either side of the room, voting by 'show of hands' was inadequate in this situation. I also argue that this limitation needs to be addressed by a revision of the TIRRA Bylaws. For example, from the BC Societies Model Bylaws:

At a general meeting, voting must be by a show of hands, an oral vote or another method that adequately discloses the intention of the voting members, except that if, before or after such a vote, 2 or more voting members request a secret ballot or a secret ballot is directed by the chair of the meeting, voting must be by a secret ballot.

I, for one, was uncomfortable with the voting process, in particular the physical separation of members onto two opposing sides. The move was divisive to the Thetis community and if somehow, 'standing' equates to 'show of hands' in the TIRRA bylaws, it was nevertheless not the right way to conduct a democratic vote. For a vote this contentious and of financial importance to every property owner and resident of Thetis Island, a secret paper ballot with a ranking of choices would have been the most democratic method of voting and needs to be included in the TIRRA bylaws as an option.

In summary, every effort should have been made to ensure potential voters were adequately notified so that they knew what was being asked of them, and that the democratic voting process was carried out in a way that was respectful to members and inspired confidence in the outcome. The July 23 General Meeting failed in these fundamental ways.

I ask you, as the TIRRA Executive, to:

1. Accept that mistakes were made, annul the July 23 vote and hold another vote using a secret ballot with two choices, 'parcel tax and user pay' and '100% parcel tax supported.'
2. Revise the TIRRA bylaws to provide more options, flexibility and accountability to the policies and procedures of the Society.

Sincerely,



Ann Eriksson, TIRRA member